

January 24, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14293

EXPIRATION DATE: April 30, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Seacon Corporation
Charlotte, NC
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-way transportation in commerce of certain multiwall paper bags that meet the UN standard performance requirements but do not have the proper specification marking. This special permit provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 178.3 in that each bag meets the UN performance standard but is not marked with the specification marking and § 172.301(c) in that each bag need not be marked with the special permit number.
5. BASIS: This emergency special permit is based on the application of Seacon Corporation dated December 13, 2005, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

January 24, 2006

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Environmentally hazardous substances, solid, n.o.s. (thiram)	9	UN3077	III
Environmentally hazardous substances, solid, n.o.s. (thiram)	9	UN3077	III
Environmentally hazardous substances, solid, n.o.s. (thiourea)	9	UN3077	III
Toxic solids, organic, n.o.s. (Diotolylguanidine)	6.1	UN2811	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are approximately 4,000 UN5M2 multiwall paper bags as authorized for the material in paragraph 6 by the HMR except that each bag has been certified but not marked as follows:

UN5M2/X20/S/05/CN/Seacon Corp.
Charlotte, NC

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered for transportation.

b. This special permit only authorizes the one-time transportation of the bags, manufactured from January 1, 2005 through December 31, 2005, until depletion of the 4,000 in inventory.

c. The bags must be transported secured on pallets.

d. Each pallet must be marked "DOT-SP 14293."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

January 24, 2006

10. MODAL REQUIREMENTS:

A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

January 24, 2006

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Robert A. McGuire", is written over a horizontal line.

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm
Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KAH